

limitation, ***negligence in rendering, or not rendering, medical or emergency aid***) and for any and all loss of life, bodily injury..." (emphasis added.)

Plaintiff's claims are based on the allegation that Defendants "breached their respective duty of care owed to [decedent] by failing to have an EMT and an AED available for use on [decedent]" (Comp. ¶20). Plaintiff alleges decedent died as a result of Defendants' negligence while playing an adult softball game at Big League Dreams Chino Hills. (Comp. ¶12.) Thus, Plaintiff's claims are based on an act of negligence by Defendants related to use of the Big League Dreams facilities, which is directly covered by the Release. Defendants have met their initial burden to show that the Release bars Plaintiff's claim.

As the motion is unopposed, Plaintiff has not provided any evidence of triable issues of material fact.

**2.**

| CASE #      | CASE NAME                      | HEARING NAME                |
|-------------|--------------------------------|-----------------------------|
| CVRI2402696 | SALAZAR VS COUNTY OF RIVERSIDE | MOTION FOR SUMMARY JUDGMENT |

**Tentative Ruling:** The Court continues this matter to Friday, July 17, 2026 at 1:30 p.m.

**3.**

| CASE #      | CASE NAME                  | HEARING NAME                                                 |
|-------------|----------------------------|--------------------------------------------------------------|
| CVRI2502763 | SABREE VS CREEK HOMES, LLC | DEFENDANT CREEK HOMES, LLC DEMURRER ON 1ST AMENDED COMPLAINT |

**Tentative Ruling:** The Court GRANTS Creek's requests for judicial notice of Exhibits 1 through 3. The Court OVERRULES the demurrers in full. Defendants shall file an Answer in 30 days.

**Factual / Procedural Context**

This is a habitability dispute between tenant and landlord. In December 2021, Plaintiff Aaliyah Sabree ("Plaintiff") became a tenant of a home located at 11026 Evergreen Loop, Corona, CA ("Property"), which is legally owned by Defendant Creek Homes, LLC ("Creek") and managed by Defendant Sudman Enterprises, Inc. dba Management One ("Management One").

Plaintiff alleges that the Property suffered ongoing water intrusion from roof leaks, plumbing leaks, HVAC leaks, and exterior sources that allowed water to migrate into the home. The Property experienced improper ventilation, strong musty and offensive odors, and dampness in habitable rooms. The water intrusion resulted in loss of use of the home and severe microbial contamination, including amplification of bacteria, mold growth, and dust mites, rendering the property uninhabitable and causing Plaintiff to suffer allergic, irritant, and infectious conditions, including asthma, allergic rhinitis, and chronic sinusitis. As a result, Plaintiff alleges she was forced to move out of the Property in July 2023.